

arbitration costs of \$26,000, attorneys' fees and costs of \$79,002.36, and prejudgment interest of \$14,149.47.

The court on its own motion schedules this matter for an order to show cause hearing on **July 21, 2026 at 9:00 a.m. in Department 32** regarding dismissal as to defendant Michael Marier who was not included in the arbitrator's award.

10. S-CV-0054901 Zehring, Richard v. General Motors

Motion to Compel Deposition

Plaintiff moves for an order compelling deposition and production of deposition documents pursuant to Code of Civil Procedure section 871.26(c) and imposing monetary sanctions of \$2,500 against defense counsel pursuant to Code of Civil Procedure section 871.26(j). The motion is unopposed.

Plaintiff submits evidence he served defendant four deposition notices to depose its person most qualified ("PMQ"), all of which defendant objected to. Plaintiff also submits evidence that defendant was not being forthcoming with dates to reschedule the PMQ deposition. Plaintiff submits evidence he served a fourth amended deposition notice scheduled for February 3, 2026 and indicates it is anticipated defendant will not comply with the deposition date. However, this motion was filed on January 20, 2026, before the date for deposition had passed. As the motion is unopposed and no reply was filed, the court has not been presented with any evidence that deposition of defendant's PMQ did not proceed as scheduled on February 3, 2026.

The court on its own motion continues this motion to **July 7, 2026 at 8:30 a.m. in Department 32**. Plaintiff is directed to file and serve (1) a notice of continued hearing and (2) supplemental declaration(s) updating the court on whether deposition occurred on February 3, 2026 as noticed in the fourth amended deposition notice.

11. S-CV-0055995 Panasyuk, Benjamin A v. County of Placer

The demurrer to the complaint is continued to **July 24, 2026 at 8:30 a.m. in Department 1** to be heard by Commissioner Christine S. Dehr together with a motion to strike filed in the same action. Department 1 is located at 101 Maple Street, Auburn, California 95603.

12. S-CV-0056237 Forrest, Devin v. Mav KG LLC

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Motion to Stay PAGA Action

Defendant moves to stay this PAGA action pending resolution of a motion to compel arbitration in a related class action pursuant to Code of Civil Procedure section 1281.4. In

the alternative, defendant moves for a discretionary stay of this PAGA action pending resolution of the federal class action. Plaintiff opposes the motion in its entirety.

Plaintiff filed a class action lawsuit against defendant in Placer County, but this case has since been removed to the California Eastern District Court. On February 18, 2025, defendant filed a motion to compel arbitration of plaintiff's individual claims and to dismiss the class claims. On September 29, 2025, the court denied the motion to compel arbitration. On October 20, 2025, defendant filed a motion for reconsideration, which the federal court has taken under submission. The federal court has not yet ruled on this motion. Plaintiff filed this PAGA action against the same defendant on September 17, 2025. The class action matter alleges several violations of the Labor Code; the action for PAGA penalties is based on the same violations of the Labor Code.

Regarding the motion for mandatory stay, Code of Civil Procedure section 1281.4 provides, in pertinent part:

If an application has been made to a court of competent jurisdiction, whether in this State or not, for an order to arbitrate a controversy which is an issue involved in an action or proceeding pending before a court of this State and such application is undetermined, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until the application for an order to arbitrate is determined and, if arbitration of such controversy is ordered, until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.

Defendant acknowledges the motion to compel arbitration has been denied in the class action but argues it remains undetermined because defendant's motion for reconsideration of the denied motion to compel arbitration has not yet been ruled on. While the court sees the logic in this argument, defendant presents no authority supporting a mandatory stay applies given the procedural posture of this case. Defendant's motion for mandatory stay pursuant to Code of Civil Procedure section 1281.4 is denied.

Regarding a discretionary stay, defendant argues the PAGA action is "duplicative" of the class action because both actions involve the same parties, the same attorneys, and the same legal and factual issues. Defendant contends discovery and motion practice would be duplicative and would run the risk of contradictory rulings between the courts. Preliminarily, the court agrees with plaintiff's position that a PAGA action and a class action are not "duplicative" and in fact distinct actions with different remedies. However, "[t]rial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency. [Citations.]" (*Freiberg v. City of Mission Viejo* (1994) 33 Cal.App.4th 1484, 1489.) In light of the overlapping factual and legal issues and because the parties are the same in each action, the court finds a stay would serve judicial economy and avoid inconsistent rulings between the actions. Defendant's motion for discretionary stay is granted.

The case management conference scheduled for July 17, 2026 is hereby vacated. The court schedules this matter for an order to show cause hearing regarding the status of stay on **December 11, 2026 at 8:30 a.m. in Department 1**. Department 1 is located at 101 Maple Street, Auburn, California 95603.

13. S-CV-0056819 Raines Owner LLC v. Rojas, Dylan Michael

If oral argument is requested, it will be heard on **June 16, 2026 at 8:30 a.m. in Department 42** by the Honorable Trisha J. Hirashima.

Defendants are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion to Dismiss Complaint

Defendants Acrisure of California LLC, Acrisure of California Partner Group LLC, and Acrisure West Insurance Services LLC move to dismiss the action for (1) lack of subject matter jurisdiction or, in the alternative, (2) on forum non conveniens grounds in the interests of justice. Plaintiff opposes the motion.

The request for joinder to the motion by defendants Brock Regan Tillotson and Dylan Michael Rojas is granted.

As to the argument that this court lacks subject matter jurisdiction, defendants contend this action concerns damages to real property located in the State of Tennessee and it is therefore a local action that shall be heard in the State of Tennessee. In support of this argument, defendants rely in part on Tennessee Code section 20-4-103, which provides:

In actions commenced by the attachment of property without personal service of process, and in cases where the suit is brought to obtain possession of personal property, or to enforce a lien or trust deed or mortgage, or where it relates to real property, the attachment may be sued out or suit brought in any county where the real property, or any portion of it, lies, or where any part of the personal property may be found.

Preliminarily, this is a venue statute describing what county in which an action should be brought in the State of Tennessee. It does not support a finding that this court lacks subject matter jurisdiction to hear this case. Plaintiff's complaint alleges causes of action for breach of fiduciary duty, negligence, intentional misrepresentation, concealment, negligent misrepresentation, and an Unfair Competition Law claim. These claims are based in professional negligence and fraud rather than claims for the recovery of or title to real property. While plaintiff's complaint involves facts pertaining to real property located in Tennessee, it does not include any allegations any defendant caused the damage to the real property. Moreover, the alleged wrongdoing is alleged to have occurred within the State of California. The complaint further alleges that the individual defendants reside in the State of California. It appears from the face of the complaint and the claims therein that this court has subject matter jurisdiction over these claims and